

Jammu and Kashmir (IPS) Departmental Examination Rules, 2017

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State of Jammu-Kashmir - Act

Jammu and Kashmir (IPS) Departmental Examination Rules, 2017

JAMMU & KASHMIR

India

Jammu and Kashmir (IPS) Departmental Examination Rules, 2017

Rule JAMMU-AND-KASHMIR-IPS-DEPARTMENTAL-EXAMINATION-RULES-2017 of 2017

Published on 21 April 2017

Commenced on 21 April 2017

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[Note: The original publication document is not available and this content could not be verified.]

Jammu and Kashmir (IPS) Departmental Examination Rules, 2017

Published vide Notification No. SRO-191, Jammu, dated 21st April, 2017

SRO-191. - In exercise of the powers conferred by the proviso to section 124 of the constitution of Jammu and Kashmir read with clause (c) of rule 2 of the Indian Police Service (Pay) Rules, 2007, the Government of Jammu and Kashmir hereby makes the following rules, namely :-

1.

Short title, extent and commencement.

(a)

These rules may be called the Jammu and Kashmir (IPS) Departmental Examination Rules, 2017.

(b)

These rules shall be applicable to the direct recruit IPS Officers of the Jammu and Kashmir Cadre.

(c)

These rules shall come into force from the date of their publication in the Official Gazette.

2.

Definitions.

(a)

"Annexure" means the annexure appended to these rules ;

(b)

"Commission" means the Jammu and Kashmir Public Service Commission ;

(c)

"Examination" means the Departmental Examination held under these rules ;

(d)

"Government" means the Government of Jammu and Kashmir;

(e)

"Officer" means a directly recruited IPS officer belonging to the Indian Police Service (IPS) of the Jammu and Kashmir Cadre ;

(f)

"State" means the State of Jammu and Kashmir ;

(g)

"Service" means the Indian Police Service.

3.

Examination.

(1)

The examination shall be conducted by the Commission twice in a year at such place and time as may be appointed by the Commission.

(2)

The examination shall comprise of a total of six papers.

4.

Syllabus.

(1)

The syllabus for the examination shall be such as is specified in Annexure to these rules.

(2)

The Government may, in consultation with the Commission, modify the syllabus as considered necessary, from time to time.

5.

Rules and procedure to conduct the examination.

- The rules and procedure regarding the conduct of the examination shall be prescribed by the commission separately.

6.

Application.

- Applications to the Commission for appearing in the examination shall be routed through the Administrative Department of the officer.

7.

Appointment to the Senior Time Scale.

(1)

An officer shall be appointed to a post in the Senior Time Scale of pay, if, having regard to his length of service and experience, the Government is satisfied that he is suitable for appointment to a post in the Senior Time Scale of pay.

(2)

He shall not be appointed to a post in the Senior Time Scale of pay, if he is under suspension or disciplinary proceedings are instituted against him, until he is reinstated in service or the disciplinary proceedings are concluded and final orders passed.

(3)

Upon the conclusion of disciplinary proceedings, if the officer is exonerated fully and the period of suspension, if any, is

treated as duty, he shall be appointed to the Senior Time Scale of pay from the date on which he would have been so appointed, had the disciplinary proceedings not been instituted against him, and paid accordingly.

(4)

If the officer is not exonerated fully, and the Government, after considering his case on merits, proposes not to appoint him to the Senior Time Scale of pay from the date on which he would have been so appointed, had the disciplinary proceedings not been instituted against him, he shall be given an opportunity to show cause against such action.

(5)

Notwithstanding anything contained in sub-rule (2), (3)&(4) above, the Government may withhold the appointment of an officer referred to in sub-rule (1) above, to a post in the Senior Time Scale of pay, till he is confirmed in the Service or till he passes the prescribed examination ; or appoint him to a post in the Senior Time Scale of pay as a purely temporary or local arrangement ; and appoint to such a post an officer junior to him.

8.

Repeal.

- All existing rules and orders relating to matters covered by these rules shall stand superseded from the date of issuance of these rules.

Syllabus for the Departmental Examination of Direct Recruit IPS Officers

Paper-I

A. Constitution of India :

Topics :

(i)

Directive Principles of the State Policy.

(ii)

Restrictions on Rights of Police.

(iii)

Powers of High Courts to issue writs.

(iv)

Services under Union and States.

(v)

Powers and Privileges of the Houses of Parliament and Members of the Committees thereof.

(vi)

Powers and Privileges of Houses of Legislature and Members of the Committees thereof.

(vii)

Seventh Schedule, Union State and Concurrent Lists.

B. Constitution of J&K :

(i)

Back Ground and Nature-

(a)

Preamble ;

(b)

Object and scope of the Preamble.

(ii)

Relationship of the State with the Union of India.

(iii)

Territory of the State.

(iv)

Extent of Executive and Legislative Power of the State.

(v)

Permanent residents.

(vi)

Geographical features of the J&K State.

C. Human Rights :

- (i)
Important Court judgments on the issue of Human Rights and Departmental instructions regarding treatment of victims of crime, complainant, witnesses and accused.
 - (ii)
Role of Police in protection of Human Rights.
 - (iii)
Common complaints against Police regarding Human Rights (case studies).
 - (iv)
Need of an initiative to improve image of Police as custodian of Human Rights.
 - (v)
State Human Rights Commission-Aims and Objectives.
 - (vi)
Standard Operating Procedures for dealing with Law and Order problems.
- D. Economic Crimes.
- Paper-II
- Local and Special Laws :
- Topic :
- (i)
Armed Forces (Jammu and Kashmir) Special Powers Act, 1990.
 - (ii)
Arms Act, 1959.
 - (iii)
Cigarettes and other Tobacco products (Prohibition of Advertisement and Regulation of Trade and Commerce, Production, Supply and Distribution) Act, 2003.
 - (iv)
Delhi Special Police Establishment Act, 1946.
 - (v)
J&K Disturbed Area Act, 1990.
 - (vi)
Dowry Restraint Act.
 - (vii)
J&K Egress and Internal Movement (Control) Ordinance, 2005.
 - (viii)
J&K Enemy Agent Ordinance, 2005.
 - (ix)
Essential Commodities Act, 1955.
 - (x)
J&K Excise Act, 1958.
 - (xi)
Explosive Substances Act, 1908.
 - (xii)
Explosives Act, 1884.
 - (xiii)
Extradition Act, 1962.
 - (xiv)
Foreigners (Amendment) Act, 2004.
 - (xv)
J&K Forest Act, 1987.
 - (xvi)
Good Conduct Prisoners (Temporary Release) Act, 1978.
 - (xvii)

Information Technology Act, 2000.

(xviii)

J&K Juvenile Justice Act, 2012.

(xix)

Passport Act, 1967.

(xx)

Passport Entry into India Act, 1920.

(xxi)

Police Enhanced Penalties Ordinance, 2005.

(xxii)

Police Force (Restriction of Rights) Act, 1966.

(xxiii)

Police (Incitement of Disaffection) Act, 1922.

(xxiv)

Prevention and Suppression of Sabotage Act, 1965.

(xxv)

Prevention of Beggary Act, 1960.

(xxvi)

J&K Prevention of Corruption Act, 1988.

(xxvii)

J&K Prevention of Illicit Traffic in Narcotic Drugs and Psychotropic Substances Act, 1988.

(xxviii)

J&K Protection of Human Rights Act, 1997.

(xxix)

Public Gambling Act, 1977.

(xxx)

J&K Public Property (Prevention of Damage) Act, 1985.

(xxxi)

J&K Public Safety Act, 1978.

(xxxii)

Unlawful Activities (Prevention) Act, 1967.

(xxxiii)

Evidence Act, Svt. 1977 (1920 AD).

Paper-III :

(i)

J&K Police Act.

(ii)

J&K Police Manual.

(iii)

Ranbir Penal Code, Svt. 1989 (1932 AD).

(iv)

Criminal Procedure Code, Svt. 1989 (1933 AD).

(v)

Law on Cyber Crimes.

(vi)

Civil Procedure Code (Section 1 to 158).

Paper-IV

1. Financial Code (Vol-I). - The following Chapters only :-

Chapter No

.

I Definitions.

II General Principles and Rules

IV Pay Allowances and Pension

V Pay allowance etc. of Gazetted Government servants

VI Pay allowance etc. of Establishment

VII Contingencies

VIII Stores

XVI Budget

XVII Powers of sanction

XVIII Miscellaneous subjects

2. Financial Code (Vol-II). - The following Appendices only :-

APPENDIX No.

DETAIL

2

Instructions for regulating the enforcement of responsibility for losses sustained through fraud, negligence etc.

5

Rules relating to the grant of rewards 6.

6

Rules regulating the purchase and issue of liveries (Uniform).

7

Rules regulating the grant of expenses in Criminal cases to witnesses summoned by court.

11

Rules regulating the destruction of account records in offices.

12

Minimum life prescribed for stock articles.

13

Rules relating to the use of Jeeps and other Government vehicles.

3. Book of Financial Powers.

Paper-V

Service Laws :

1.

-J&K Civil Services Regulations, 1956 (Vol-I). - The following Chapters only :-

Chapter No

.

II Definitions.

III General Rules.

V Officiating allowance.

VII Regulation of pay and allowances.

IX Joining time.

X Officers dismissed or suspended or imprisoned.

XXVI to XXXI Rules relating to T. A.

2. J&K Government Employees (Conduct) Rules, 1971.

3. J&K Civil Services (Classification, Control and Appeal Rules), 1956.

4. J&K Civil Services (Leave) Rules, 1979.

5. J&K Civil Services (Medical Attendance-cum-Allowance) Rules, 1990.

6. J&K Police (Gazetted) Service Recruitment Rules, 2002.

7. Jammu and Kashmir Special Provisions Act, 2010.

8. J&K RTI Act, 2009 and Rules.

9.

J&K Public Services Guarantee Act, 2011.

Paper-VI

Local Language (State Language) :

(1)

Proficiency in writing/reading.

(2)

Drafting of documents of investigation.

(3)

Urdu Language test (written paper of normal standard to test the knowledge of the candidate).

(4)

Oral test in colloquial Kashmiri and dogri language.

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